

Plaintiff argues the lack of a signed settlement agreement prevents enforcement, but this is not a motion to enforce a settlement agreement pursuant to CCP § 664.6. The outward, objective conduct indicates that the parties agreed to dismiss this case only if each party would bear their own attorney's fees and costs.

Plaintiff also argues that the emails regarding the agreement to dismiss the case are inadmissible under Evidence Code § 1154. This argument is without merit. Evidence Code § 1154 only applies when a party is offering settlement offers to "prove the invalidity of the claim or any part of it." For example, when a party attempts to argue damages should be reduced because of a pre-litigation settlement offer that is lower than what is being sought at trial. Evidence Code § 1154 is not applicable here where the emails reflect the actual agreement between the parties and are being offered to prove that said agreement exists – not the "invalidity" of a claim.

The court denies the motion as the objective, outward manifestations of conduct by the parties indicate an agreement to dismiss the entire action on the condition that each party bears its own attorneys' fees and costs.

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CASE #	CASE NAME	HEARING NAME
CVRI2507217	LENARD vs AMAZON.COM SERVICES, LLC	APPLICATION TO APPEAR PRO HAC VICE

Tentative Ruling:

The motion is granted. Moving party is ordered to submit a proposed order consistent with this ruling by no later than August 10, 2026, by 5:00 p.m.